

FILED
2022 JUL 15 09:00 AM
KING COUNTY
SUPERIOR COURT CLERK
E-FILED
CASE #: 22-2-09380-3 KNT

Superior Court of Washington, County of King

In re:

Petitioner/s (*person/s who started this case*):

Melvina Catherine Maning

And Respondent/s (*other party/parties*):

Zackariah Jeremiah Bennett

No. 22-2-09380-3

Motion for Dismissal
(MTDSM)

Motion for Dismissal

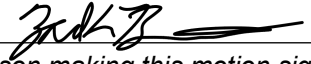
Important! The person making this motion must ask the court to sign the Order on Motion for Dismissal (FL All Family 164) either at a hearing or at ex parte.

- If you don't have to notify the other side because s/he has signed the order or has not appeared in any way, you may have the order signed at ex parte.
- Otherwise, you may use the Notice of Hearing form (FL All Family 185) unless local rule requires a different form. Contact the court for scheduling information.

1. I am the (*check one*): ☐ Petitioner. ☒ Respondent.
2. I filed the *Petition* to start this case (*name of Petition*): _____
3. I ask the court to dismiss my *Petition* because: (*explain*): _____

4. The other party (*check one*):
 - ☐ **agrees** this case should be dismissed and has signed below.
 - ☐ has **not appeared** in this case.
 - ☐ has appeared, but has **not** asked the court to approve any orders or grant any requests.
 - ☒ has appeared and **has asked** the court to approve an order or grant a request.

Person making this motion fills out below.

►  Zackariah Jeremiah Bennett 07/11/2021
Person making this motion signs here Print name (if lawyer, also list WSBA#) Date

Other party fills out below if s/he agrees to dismiss this case.

► _____
Other party's signature Print name (if lawyer, also list WSBA#) Date

Superior Court of Washington, County of King_____

In re:

Petitioner/s (*person/s who started this case*):

Melvina Catherine Manning

And Respondent/s (*other party/parties*):

Zackariah Jeremiah Bennett

No. 22-2-09380-3_____

Declaration of
(*name*): Zackariah Jeremiah Bennett
(DCLR)

Declaration of (*name*): Zackariah Jeremiah Bennett_____

1. I am (*age*): 41____ years old and I am the (*check one*): ☐ Petitioner ☒ Respondent

☐ Other (*relationship to the people in this case*): _____

2. I declare: *Respondent, Zackariah Jeremiah Bennett, does move to dismiss the Complaint*

for: Lack of Subject Matter Jurisdiction; Failure to State a Claim upon which relief can be granted; Lack of Standing – based on the grounds set forth below.

Lack of Subject Matter Jurisdiction; In order for an ex parte Domestic Violence Protection Order to be filed it must allege "...irreparable injury could result from domestic violence if an order is not issued immediately without prior notice to the respondent...". "...Irreparable injury under this section includes but is not limited to situations in which the respondent has recently threatened petitioner with bodily injury or has engaged in acts of domestic violence against the petitioner." Domestic Violence as defined in Washington Revised Code Title 26. Domestic Relations § 26.50.010 (3) "Domestic violence" means: (a) Physical harm, bodily injury, assault,

or the infliction of fear of imminent physical harm, bodily injury or assault, sexual assault, or stalking as defined in [RCW 9A.46.110](#) of one intimate partner by another intimate partner; or (b) physical harm, bodily injury, assault, or the infliction of fear of imminent physical harm, bodily injury or assault, sexual assault, or stalking as defined in [RCW 9A.46.110](#) of one family or household member by another family or household member.

As the petition lacks allegation of any actions by the respondent that meet either definition (irreparable injury & domestic violence), nor any statements of fact that would give reasonable cause to believe that that the respondent has ever committed domestic violence against the other party let alone that irreparable injury could result from domestic violence. Lacking a credible allegation that meets the defined standard required for issuance of the motion, the rest is moot for there is no subject matter left to have jurisdiction over.

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___ **Failure** to State a Claim upon which relief can be granted: There was no allegation made in the petition that meet the definition of Domestic Violence (when viewed as if everything the petitioner filed was the truth.) , as no DV occurred

Lack of standing: he [petitioner] bears the burden of meeting the "irreducible constitutional minimum" of Article III standing by establishing three elements:

-First, the [petitioner] must have suffered an injury in fact — an invasion of a legally protected interest which is (a) concrete and particularized and (b) actual or imminent, not conjectural or hypothetical.

-Second, there must be a causal connection between the injury and the conduct complained of the injury has to be fairly traceable to the challenged action of the defendant, and not the result of the independent action of some third party not before the court.

-Third, it must be likely, as opposed to merely speculative, that the injury will be redressed by a favorable decision. Lujan v. Defenders of Wildlife, 504 U.S. 555, 560-61 (1992) (internal quotations, alterations, and citations omitted).

We have recognized that of the three required elements of constitutional standing, "the injury-in-fact element is often determinative." Toll Bros., Inc. v. Twp. of Readington, 555 F.3d 131, 138 (3d Cir. 2009). To satisfy this requirement, the alleged injury must be "particularized," in that it "must affect the [petitioner] in a personal and individual way." Lujan, 504 U.S. at 560 n.1. "[T]he 'injury in fact' test requires more than an injury to a cognizable interest. It requires that the party seeking review be himself among the injured." Id. at 563 (quoting Sierra Club v. Morton, 405 U.S. 727, 734-35 (1972)). The injury must also be "an invasion of a legally protected interest." Id. at 560. Furthermore, "the standing inquiry requires careful judicial examination of a complaint's allegations to ascertain whether the particular [petitioner] is entitled to an relief for the particular claims asserted." Allen, 468 U.S. at 752. Therefore I move to dismiss the action as well as all orders put in place from the action. The action was initiated in bad faith to hamper respondents efforts in litigating the petitioner on matters concerning my Parental Rights & a Communication Agreement concerning my son [Timothy Edward Bennett II] and I from 2012; the plaintiff either made it in bad faith, or simply chose to ignore the terms of, since the day I signed it.

I declare under penalty of perjury under the laws of the state of Washington that the facts I have provided on this form (and any attachments) are true. ☐ I have attached (number): 0__ pages.

Signed at (city and state): Goldendale, WA

Date: 07/11/2022_____

► 
Sign here

Zackariah Jeremiah Bennett
Print name

Superior Court of Washington, County of King

In re:

Petitioner/s (*person/s who started this case*):

Melvina Catherine Manning

And Respondent/s (*other party/parties*):

Zackariah Jeremiah Bennett

No. 22-2-09380-3

Notice of Hearing
(NTHG)

☒ Clerk's action required: **1**

Notice of Hearing

To the Court Clerk and all parties:

1. A court hearing has been scheduled:



for: July 22nd 2022 at: 8:30 ☒ a.m. ☐ p.m.
date time

at: Appear by Zoom in
court's address room or department

Commissioner Pro Tem, Javier Ortiz

docket / calendar or judge / commissioner's name

2. The purpose of this hearing is (*specify*): Motion for Dismissal

Warning! If you do not go to the hearing, the court may sign orders without hearing your side.

This hearing was requested by: ☐ Petitioner or his/her lawyer ☒ Respondent or his/her lawyer

▶ 

Person asking for this hearing signs here

Zackariah Jeremiah Bennett

Print name (if lawyer, also list WSBA #)

07/13/2022

Date

I agree to accept legal papers for this case at:

17 Old Mountain Rd

address

Goldendale, WA 98620

city

state

zip

(Optional) email:

This does **not** have to be your home address. If this address changes before the case ends, you **must** notify all parties and the court clerk in writing. You may use the *Notice of Address Change* form (FL All Family 120). A party must also update his/her *Confidential Information* form (FL All Family 001) if this case involves parentage or child support.